

23SMCV05198 23SMCV05198

County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 23SMCV05198 Hearing Date: September 16, 2026 Dept: N

TENTATIVE RULING

Defendant Elie Samaha's Motion to Set Aside Default Judgment is DENIED.

Plaintiff The Wilshire Condominium Association to give notice.

REASONING

Defendant moves to vacate the default judgment entered against him, arguing he did not receive actual notice in time to defend. Defendant contends the substituted service was left with a front desk security guard at a location where he does not reside, and that he never received the documents. Defendant contends he acted immediately upon learning of the judgment on April 15, 2026.

In opposition, Plaintiff argues first the instant motion was never served on Plaintiff and therefore should be denied. Plaintiff further argues the motion should be denied as untimely. Finally, Plaintiff argues service on Defendant was proper.

First, the record reflects the instant motion was never served on Plaintiff. All moving and supporting papers must be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005.) Proof of service of the moving papers must be filed no later than five court days before the hearing. (Cal. Rules of Court rule 3.1300.) Defendant's motion contains no proof of service, and no proof of service has been filed with the Court.

Second, Defendant's motion is untimely. A motion "shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).) The Court may set aside a default judgment "[u]pon a finding by the court that the motion was made within the period permitted by subdivision (a)." (Code Civ. Proc., § 473.5, subd. (c).)

Here, judgment was entered in favor of Plaintiff on May 15, 2025, and written notice of entry was served on Defendant on May 16, 2025. Therefore, the 180-day period expired on November 12, 2025. Defendant did not file the instant motion until July 1, 2026. Because the instant motion was not made within the period permitted by subdivision (a), the Court cannot make the finding that section 473.5(c) requires.

Regardless, service of the summons and complaint on Defendant was proper. Substituted service on an individual is authorized where the summons and complaint "cannot with reasonable diligence be personally delivered to the person to be served," by leaving a copy at the person's dwelling house or usual place of abode "in the presence of a competent member of the household or a person apparently in charge," and by thereafter mailing a copy to that address, with service deemed complete on the tenth day after mailing. (Code Civ. Proc., § 415.20, subd. (b).)

Here, the process server made three attempts to serve Defendant personally at 1331 North Cahuenga Boulevard, Apt. 3409 — on March 5, 8, and 9, 2024 — before effecting substituted service on the front-desk security guard on March 11, 2024, and mailing a copy to Defendant at the same address on March 12, 2024. (Medioni Decl., ¶ 5.)

Further, Defendant's contention that he does not reside at the service address is contradicted by his own sworn testimony at his July 6, 2026, judgment debtor examination, where he testified that he lived at that address in 2024 and 2025, and therefore lived there at the time service was made. (Medioni Decl., ¶ 9.)

Based on the foregoing, Defendant's motion to vacate default judgment is denied.